



Order under Section 88.2 / 89 Residential Tenancies Act, 2006

Citation: Soltani v Yilmaz, 2025 ONLTB 94876

Date: 2025-12-23

File Number: LTB-L-031864-25

In the matter of: 61 SNOWCREST AVE
NORTH YORK ON M2K2K9

Between: Razmin Soltani
Roya Aghakachooei Landlord

And

Ercan Yilmaz Former Tenant

The capitalized words "Landlord" and "Tenant" refer to all parties identified as each at the top of the order.

Razmin Soltani and Roya Aghakachooei (the 'Landlord') applied for an order requiring Ercan Yilmaz (the 'Former Tenant') to pay the Landlord's reasonable out-of-pocket costs that are the result of the Former Tenant's failure to pay utility costs they were required to pay under the terms of the tenancy agreement.

Razmin Soltani and Roya Aghakachooei (the 'Landlord') applied for an order requiring Ercan Yilmaz (the 'Former Tenant') to pay the Landlord's reasonable out-of-pocket costs that the Landlord incurred or will incur to repair or replace undue damage to property. The damage was caused wilfully or negligently by the Former Tenant, another occupant of the rental unit or someone the Former Tenant permitted in the residential complex.

This application was heard by videoconference on December 3, 2025.

Only the Landlord attended the hearing.

As of 10:47 a.m., the Former Tenant was not present or represented at the hearing although properly served with notice of this hearing by the Landlord. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlord's evidence

Determinations:

1. As explained below, the Landlord proved the allegations contained in the application on a balance of probabilities. Therefore, remedy is granted as set out below.

2. I am satisfied that the Landlord served the Former Tenant with the application and Notice of Hearing at least 30 days before the hearing in accordance with Rule 3.3 of the LTB's Rules of Procedure.
3. I am satisfied that the Landlord served the Former Tenant with the application and Notice of Hearing using a method permitted in subsection 191(1.0.1) of the *Residential Tenancies Act, 2006* (the 'Act') and Rule 3.3 of the LTB's Rules of Procedure.
4. The L10 application and Notice of Hearing were served on October 18, 2025, by hand. The evidence was served by email on March 5, 2025, along with another copy of the application and hearing notice.
5. The Former Tenant vacated the rental unit on February 17, 2025.
6. The application was filed within one year after the Former Tenant ceased to be in possession of the rental unit.
7. Referring to the document brief in evidence containing invoices and pictures, previously served to the Former Tenant, the Landlord testified to the following.
8. The Former Tenant failed to pay water and sewer costs that they were required to pay under the terms of the tenancy agreement.
9. The Landlord incurred reasonable out-of-pocket expenses of \$748.84 as a result of the Former Tenant's failure to pay water and sewer costs. The services were from October 20, 2024 to February 23, 2025; no extra services were utilized for the 5-day period until the Former Tenant vacated.
12. The Former Tenant, another occupant of the rental unit or a person whom the Former Tenant permitted in the residential complex wilfully or negligently caused undue damage to the rental unit or residential complex.
13. The Former Tenant left numerous large furniture items throughout the house including but not limited to Beds, couch and chairs, as well as smaller items including a vacuum, small appliances and dishes. The garage also contained numerous items and garbage, and there were garbage bags left in the house. The second-floor hallway had dark marks/stains in the wood; it had been fully sanded and lacquered prior to the tenancy beginning. The master-bedroom floor had burn marks; it was undamaged upon move-in. The living area floor appears to be where the cat litter box was kept and was covered in light greyish marks from the litter; the floor stunk of cat urine and required a deep-clean and sanding/varnishing. The approximate 5-year-old stove was damaged; whereby none of the burners worked; although it needed replaced, the Landlord is not pursuing this cost.
14. The Landlord incurred reasonable costs of \$1,600.00 to repair the floors, and \$1,300.00 for the furniture disposal for a total of \$3,800.00 to repair the damage property that was damaged and cannot reasonably be repaired. The Landlord also incurred \$8,500.00 to repair holes in the walls and paint but is not seeking reimbursement of this expense.
15. Black's Law Dictionary defines damage as loss, injury, or deterioration, caused by the negligence, design, or accident of one person to another, in respect of the latter's person

or property, and wear and tear as deterioration or depreciation in value by ordinary and reasonable use of the subject matter. Although the disposal costs may not be damage, such charges can be pursued under section 88.1 of the Act, specifically, substantial interference with the reasonable enjoyment or a lawful right, privilege or interest of the landlord. Pursuant to my discretion under Rule 26.3, I am amending the application on my own motion for these charges to be moved to Reason 5 in the application, substantial interference. There is no prejudice to the Former Tenant, as they were aware of the charges being pursued in the application.

It is ordered that:

1. The Former Tenant shall pay to the Landlord \$748.84, which represents the reasonable out-of-pocket expenses the Landlord incurred as a result of the unpaid utility costs.
2. The Former Tenant shall also pay to the Landlord \$3,800.00, which represents the reasonable costs the Landlord incurred as a result of the damage and substantial interference.
3. The Former Tenant shall pay to the Landlord \$186.00 for the cost of filing the application.
4. The Landlord owes \$400.00 which is the amount of the rent deposit and interest on the rent deposit, and this is deducted from the amount owing by the Former Tenant.
5. The total amount the Former Tenant owes the Landlord is \$4,734.64*. See Schedule 1 for the calculation of the amount owing.
6. If the Former Tenant does not pay the Landlord the full amount owing on or before January 2, 2026, the Former Tenant will start to owe interest. This will be simple interest calculated from January 3, 2026, at 4.00% annually on the balance outstanding.

December 23, 2025

Date Issued

Diane Wade

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor
Toronto ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

* Refer to the attached Summary of Calculations.

Schedule 1
SUMMARY OF CALCULATIONS

Amount the Former Tenant must pay the Landlord:

Utility Costs	\$748,84
Damage Costs	\$3,800.00
Application Filing Fee	\$186.00
Less the amount of the last month's rent deposit	- \$400.00
Total amount owing to the Landlord	\$4,734.84

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